



Notification Waiver Determination

Count – Oracle Group

Acquisition	Count Limited (Count) proposes to acquire 100% of the issued shares in Tamarama Accounting Pty Ltd, Tamarama Advisory Pty Ltd and Tamarama Investment Management Pty Ltd (the Target Companies) through its wholly owned subsidiaries (Count Holdings No. 3 Pty Ltd, Count Holdings No. 1 Pty Ltd and Count Holdings No. 4 Pty Ltd), as described in the transaction documents provided as part of the application (the Acquisition). Immediately prior to completion, the assets and businesses operated by Oracle Accounting (Australia) Pty Ltd as trustee for the Oracle Accounting Unit Trust (Oracle Accounting), Oracle Advisory Group Pty Ltd as trustee for the Oracle Advisory Group Unit Trust (Oracle Advisory) and Oracle Investment Management Pty Ltd as trustee for the Farnam Unit Trust (Oracle Investment Management) (together, the Oracle Group) will be transferred to the respective Target Company. Count Holdings No. 3 Pty Ltd, Count Holdings No. 1 Pty Ltd and Count Holdings No. 4 Pty Ltd applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	1 July 2026

Parties to the Acquisition	The acquirer, Count, is an ASX listed company, comprising an integrated network of over 120 firms providing accounting and wealth management services throughout the country (except for the Northern Territory). Count's business is organised into three operating segments: 1. equity partnerships (includes investments into firms that provide accounting, audit and assurance, taxation, financial planning services as well as business and corporate advisory services); 2. wealth (includes financial services and investments products provided by Australian Financial Services Licence holders); and 3. services (includes services that support the activities of accounting and financial planning firms that are both internal and external to Count's network, including actuarial certificates, consulting, IT services, training and helpdesk and support services).
-----------------------------------	---

	The target, Oracle Group, provides financial advice, accounting and investment management services from a network of 14 offices across New South Wales, Queensland and Victoria. Oracle Group operates through three distinct specialist business: 1. Oracle Accounting provides a full-service accounting offering to individuals and businesses, with services including personal and business taxation, bookkeeping, business services, preparation of business activity statements / instalment activity statements, accounting services for self-managed super funds and audit coordination; 2. Oracle Advisory provides independent and holistic financial planning and wealth accumulation strategies to individuals, families and retail and wholesale businesses, with services including investment advice, retirement planning, superannuation, insurance advice, estate planning and lending advice; and 3. Oracle Investment Management provides managed investment solutions including discretionary portfolio management across equities, property and fixed income Both Count and the Oracle Group supply financial advisory services, financial investment management services and accounting services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties' combined share in the supply of financial advisory services, financial investment management services and accounting services in NSW, Victoria, Queensland and nationally is low and the increase in share of supply arising from the Acquisition would be small b. there are alternative suppliers of financial advisory services, financial investment management services and accounting services in NSW, Victoria, Queensland (including in the areas surrounding Oracle Group's offices) and nationally. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**